

Before the

FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT STATUS REPORT

Complainant 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” and, collectively with Complainant, the “Parties”), by their respective undersigned counsel, hereby submit this Joint Status Report in further response to the Presiding Officer’s July 18, 2024 Order Granting Motion to Extend Time to Reply and in further support of the Parties’ pending June 28, 2024 Motion to Extend Expert and Other Deadlines. Since the filing of the Parties’ July 22, 2024, Joint Status Report, the Parties have completed eight additional fact depositions, exceeding more than 100 hours of total testimony, with more scheduled for next week. The Parties are continuing to coordinate availabilities to confirm the dates for the remaining fact depositions to be taken, are working collaboratively to address recently served document requests, and have agreed among themselves to mutual extensions of the time to prepare and exchange expert reports due to the ongoing and incomplete nature of fact discovery. In order to avoid prejudice to both Complainant and Respondents in their respective abilities to complete necessary fact discovery, prepare expert analysis on the basis of a full factual record, and present to the Presiding Officer adequate and appropriate briefing of the issues for decision in this case,

the Parties respectfully reiterate their joint request that the Presiding Officer grant their June 28, 2024 Motion to Extend Expert and Other Deadlines and adopt the revised deadlines contained therein.

Dated: August 2, 2024

Respectfully submitted,

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